

		Additionally, the court may impose a monetary sanction ordering that one engaging in conduct that is a misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, included attorney’s fees incurred as a result of that conduct. (Code Civ. Proc. § 2023.030(a).) The court shall impose a monetary sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (<i>Ibid.</i>) Misuses of the discovery process include “[f]ailing to respond or to submit to an authorized method of discovery.” (Code Civ. Proc. § 2023.010(d).) The burden of showing that a party acted with substantial justification or that other circumstances make the imposition of the sanction unjust is on the losing party. (<i>Golf & Tennis Pro Shop, Inc. v. Superior Court</i> (2022) 84 Cal.App.5th 127, 139.) Here, VWGOA requests monetary sanctions in the amount of \$1,837.50 consisting of 1.5 hours to draft the instant motion, and 3.0 hours to review the opposition and to prepare a reply and appear at the hearing at \$395 per hour, plus a \$60 filing fee. (Declaration of Lindsey M. Espinosa, ¶ 8.) Plaintiff fails to show she acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Accordingly, the Court GRANTS monetary sanctions in the reduced amount of \$850 against Plaintiff and her counsel, Strategic Legal Practices, APC, to be paid within 30 days. Defendant VWGOA to give notice.
8.	30-2026-01566933 In Re: Petition of CBC Settlement Funding, LLC	1. Motion-Other Petitioner, CBC Settlement Funding, LLC, petitions and moves for an order approving the transfer of structured settlement payment rights by and between Matthew Proost, as transferor (“Payee”), and CBC Settlement Funding, LLC, as transferee pursuant to Insurance Code section 10134 et seq. The First Amended Verified Petition (“Petition”) and Amended Motion are GRANTED. Petitioner to submit formal order. The Court has reviewed and approves the Petition to sell to the transferee future payments. The Court approves Payee transferring the Payee’s rights to structured settlement payments totaling \$524,533.53 in exchange for a purchase price of \$260,000. The Court finds the following: (1) The transfer is in the best interest of the payee taking into account the welfare and support of the payee’s dependents. (2) The payee has been advised in writing by the transferee to seek independent professional advice regarding the transfer and has either received that advice or knowingly waived in writing the opportunity to receive the advice. (3) The transferee has complied with the notification requirements of Insurance Code § 10136 and the transfer agreement complies with Insurance Code §§ 10136 and 10138. (4) The transfer does not contravene any applicable statute or the order of any court or other government authority. (5) The payee understands the terms of the transfer agreement, including the terms set forth in the disclosure statement required by Insurance Code § 10136. (6) The payee understands and does not wish to exercise the payee’s right to cancel the transfer agreement. (Insurance Code § 10139.5(a).) Petitioner to give notice.